DIVISION BENCH ITEM NO.117

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA NO.28/2023 IN CP (CAA) No.05/ALD/2023 IN CA (CAA) No.9/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 6th December, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**EPACK COMPONENTS PVT. LTD. WITH EPACK DURABLE PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Surendra Khanna, Adv. : *For the Petitioner Company*

Sh. Shivendra Bahadur Singh, CGSC : *For the ROC*

Sh. Ajit Kumar Singh, AOL : *For the RD (NR)/ O.L. Alld.*

Sh. Niraj Kr. Singh, Proxy for
Sh. Gaurav Mahajan, Sr. S.C. : *For the I.T. Deptt.*

ORDER

Ld. Counsels representing the parties are present through VC.

1. In this case, the reports on behalf of RD (NR), Official Liquidator as well as Income Tax Department have been filed.

2. The report filed on behalf of the RD (NR), in para no.10 (ii), it has been duly noticed that the Transferee Company has been converted from private limited to public limited on 28.06.2023, and in pursuance thereto it is further stated in sub-para (iii) that consequent upon the conversion, the ROC, Kanpur has also issued certificate of incorporation to public company as on the aforesaid date.

3. The Income Tax Department has directly filed its report dated 05.07.2023 with respect to the petitioner companies with the Registry of this Tribunal, wherein it has been observed that there is some outstanding demand, apart from that the proceedings U/s 148 are also pending.

-Sd- ***-Sd-***

4. Ld. Counsel representing the petitioner companies, however states that in so far as the pending demands are concerned, an undertaking has already been filed *vide* diary no.3075 dated 05.12.2023, wherein it has been stated in para 4 that any Tax Liability(ies) would be taken care of by the Transferee Company and the Transferee Company undertakes to comply with the same as per law.

5. Ld. Counsel representing the Income Tax Department, however states that apart from the pending amount liable to be paid, as referred to above, the proceedings are also pending U/s 148. He therefore seeks a short adjournment particularly in the context of the pending proceedings U/s 148 as well as in the context of CA No.28/2023 filed by the petitioner companies, in which the amendment was sought to the petition filed for second motion petition, whereby the Transferee Company was converted from private limited to public limited.

6. Let the response affidavit be filed by the Income Tax Department within a period of one week with an advance copy to be supplied to the learned counsel representing the petitioner.

7. The matter is adjourned for further hearing on 14th December, 2023.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

6th December, 2023

Kavya Prakash Srivastava
(Stenographer)